

IN THE CIRCUIT COURT OF _____, ARKANSAS

DIVISION

STATE OF ARKANSAS

PLAINTIFF

vs.

Case No. 0123-45-2026-CR-900123.00-AB-CDE/2201

Reyes
(First, Middle and Last name)

DEFENDANT

PETITION TO SEAL FELONY UNDER ACT 1460 OF 2013;

A.C.A.16 - 90 - 1401, Et. Seq.

Comes the Defendant and for his/her petition to seal the record states:

1. The Defendant was arrested on the Alexandrina-Katharine Montgomery-Vanderberg-Cyrlaran y Fitzwilliam III day of _____,
Possession of a controlled or counterfeit substance, second degree, with an extended status _____, and charged with the offense(s) of :

A Class _____ ☐ felony ☐ misdemeanor in violation of A. C. A. § _____

2. The Defendant either pled guilty or nolo contendere or was found guilty with the offense(s) of : Possession of a controlled or counterfeit substance, second degree, with an extended statutory description that materially exceeds one line

Criminal trespass, third degree

A Class _____ ☐ felony ☒ misdemeanor in violation of A. C. A. § _____

3. The Defendant has completed his or her sentence for the felony.
4. Defendant has paid all court costs unless payment has been excused by the Court.
5. Defendant has repaid all Court ordered restitution.

6. Defendant's felony conviction was NOT one of the following
- a . A Class Y, Class A or Class B felony except as provided in A.C.A. §16-90-1406;
 - b . Manslaughter (§5-10-104);
 - c . An unclassified felony where the maximum possible sentence of imprisonment is more than ten (10) years;
 - d . A felony sex offense;
 - e . A felony involving violence under §5-4-501 (d) (2);
 - f . A felony traffic offense committed while the Defendant was the holder of a commercial learner's permit or commercial driver's license.
7. Defendant has had no more than one (1) prior felony before this conviction.
8. ☐ Defendant was convicted either of a non-violent Class C felony or a non-violent Class D felony or other offense named in Ark. Code Ann. §16-90-1406 (a)(1) through(5) and has completed his or her sentence, or
- ☐ Defendant was convicted of a felony or other offense not named in Ark. Code Ann. §16-90-1406 (a)(1) through(5) and it has been at least five (5) years since Defendant has completed his or her sentence, or
- ☐ It has been at least one (1) year since the Court denied a Petition to Seal for this conviction.
9. ☐ Defendant has no pending felony charges in any state or federal court; or
- ☐ Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:
- Possession of a controlled or counterfeit substance, second degree, with an extended statutory description that materially exceeds one line
- Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III
10. Defendant ☐ **IS** or ☐ **IS NOT** required to register as a sex offender under the Sex Offender Registration Act of 1997 (A.C.A. § 12-12-901, Et. Seq.)
11. Defendant requests the Court enter a finding that he or she has been rehabilitated.

WHEREFORE, the Defendant, _____,
prays this Court enter an Order Sealing the above referenced felony conviction(s)
pursuant to A.C.A. §16-90-1406.

City: <u>XX</u>
State: 12345 Southwest Grandview <u> </u> Zip code: <u>01234-9999</u>
<i>Defendant's Address</i>

Defendant's Signature

Date

VERIFICATION

STATE OF ARKANSAS

COUNTY OF Saint Bartholomew and the Northern Reaches County

Comes the Petitioner, Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III, under oath and states that the foregoing Petition is true and correct to the best of my knowledge and belief.

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

Petitioner

Subscribed and sworn to before me on this _____, day of _____, 20_____.

(Seal)

Notary Public

My Commission expires: _____

THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER IDENTIFICATION OF THE DEFENDANT IN THE STATE AND NATIONAL RECORD SYSTEMS

Race _____

Arrest Tracking Number _____

Sex _____

SID No: _____

DOB 1991-04-17

FBI No. (If known) _____

Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to the Prosecuting Attorney for the County in which the Petition has been filed and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's Attorney

Date